

COMMITTEE ON FINANCE
SENATE AMENDMENTS TO H.B. 2104
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 42-12155, Arizona Revised Statutes, is amended
3 to read:

4 42-12155. Notice of approval or disapproval; appeal

5 A. The county assessor shall notify the property owner whether the
6 assessor has approved or disapproved the agricultural classification of
7 the property on or before the date on which the assessor next mails the
8 owner the notice of valuation for the property.

9 B. If the assessor disapproved the agricultural classification, the
10 assessor shall notify the owner of the reason for disapproval within one
11 hundred twenty days of the application.

12 C. The owner may appeal the decision of the assessor as prescribed
13 by chapter 16, article 2, 5 or 6 of this title.

14 D. IF THE OWNER PREVAILS IN AN APPEAL UNDER CHAPTER 16, ARTICLE 5
15 OF THIS TITLE, THE COUNTY ASSESSOR MAY NOT RECLASSIFY AGRICULTURAL
16 PROPERTY OR CONDUCT AN ON-SITE INSPECTION PURSUANT TO SECTION 42-12158 FOR
17 FOUR YEARS AFTER THE APPEAL DECISION IS RENDERED UNLESS ONE OF THE
18 FOLLOWING OCCURS:

19 1. THE PROPERTY OWNER FILES A CHANGE IN THE USE NOTICE PURSUANT TO
20 SECTION 42-12156, SUBSECTION A.

21 2. A SPLIT OF THE PROPERTY.

22 3. A CHANGE IN OWNERSHIP OR LEASE OF THE PROPERTY.

23 4. A TAXABLE IMPROVEMENT IS MADE TO THE PROPERTY.

1 [E. DURING THE FOUR-YEAR PERIOD PRESCRIBED BY SUBSECTION D OF THIS
2 SECTION, IF THE COUNTY ASSESSOR CLASSIFIES A PREVIOUSLY UNREPORTED TAXABLE
3 IMPROVEMENT AS AGRICULTURAL PROPERTY, THE COUNTY ASSESSOR MAY ASSESS THE
4 APPLICABLE PROPERTY TAX ON THE IMPROVEMENT FOR THE CURRENT TAX YEAR AND
5 ANY PRIOR TAX YEAR IN WHICH THE IMPROVEMENT EXISTED.]

6 Enroll and engross to conform

7 Amend title to conform

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